
Journal

1975 PLD 786

Court

SINDH HIGH COURT

Date

1970-06-25

Appeal No.

SUITS NOS. 48 OF 1958 ; 141, 142 OF 1962J 144 OF 1962

Judge

DORAB PATEL

Parties

SIND INDUSTRIAL TRADING ESTATES LTD.,KARACHI PLAINTIFF VERSUS MST
KHADIJABAI AND 11 OTHERS DEFENDANTS

Lawyers

SAMAD KHAN FOR PLAINTIFF.AFZAL NABI AND 4. A. FAZEEL FOR DEFENDANTS NOS. 3
AND 4.DEFENDANTS 1, 7 AND 8 : EX PARTE.DEFENDANTS NOS. 2, 9 TO 12
DROPPED.NEMO FOR DEFENDANTS NOS. 5 AND 6.

Statutes

REGISTRATION OWNERSHIP ADVERSE POSSESSION

Judgment

Judgment The plaintiff is a Company limited by guarantee and was incorporated under the Companies Act in 1948. Its sole object was and is to promote the rapid industrialisation of Karachi and Sind. It claims to be the transferee from the Government of Sind of a large area of land measuring about 4,500 acres in the Trans Lyari Quarter of Karachi, and the dispute in these five suits relates to its claim to the said land. Although these suits have been consolidated, it will be convenient to consider first Suit No. 48 of 1958.

2. According to the plaintiff, the facts material to Suit No. 48 of 1958 are as follows : After its establishment and incorporation in 1948, by a Resolution of the Sind Government dated the 10th September 1947 the Sind Government had transferred to it (the plaintiff) an area of about 4500 acres in the Trans Lyari Quarter within the limits of the Karachi Municipality. The particulars of the land thus transferred to it are set out in the Sind Government's Resolution and in its plaint, and I shall refer to this land as the said land. After the Sind Government had passed its Resolution transferring the said land to the plaintiff, it had put the plaintiff in possession of the said land and the plaintiff had erected boundary pillars on the said land wherever it considered this necessary. The southern portion of the said land passed along village Goth Shershah. The defendants 1 to 6 are the legal heirs of one Umedali Shah deceased, and like him and his wife deceased they reside in this village. The plaintiff does not make any claim to this village, but the said land adjoins this village and both Umedali Shah and the first six defendants had and have claimed ownership of the village and of the said land. Further Umedali Shah deceased had begun an illegal business "of leasing and selling plots on this land to sundry persons for large premiums". The defendants 7 to 12 are the persons who had acquired plots in the said land from Umedali Shah deceased and/or defendants 1 to 6 and had illegally seized possession of these plots. Not content merely with selling plots in the said land, Umedali Shah had attempted in 1948 to demarcate certain plots in the said land and had forcibly tried to eject the plaintiff, therefore the plaintiff had filed a complaint under section 145, Cr. P. C. before the 5th Additional City Magistrate, Karachi. The learned Magistrate had held in these proceedings that Umedali Shah deceased and one Ibrahim Khamiso, the plaintiff in Suit No. 80 of 1950, of this Court to which I shall presently refer, were in actual possession of the land "in and around the village Shershah". According to the plaintiff, this order of the Magistrate did not in any way entitle either Umedali Shah or his heirs to seize any part of the said land, but they were emboldened by this order to continue their illegal _ attempts to obtain possession of the said land from the plaintiff, therefore it was compelled to file this suit in which it claims a declaration of its title to the said land, an order for possession against defendants 7 to 12 for portions of the said land in their occupation, and an injunction against the first six defendants and their heirs restraining them from interfering in any way with its rights in the said land.

3. The suit had a very chequered history and had originally been filed on 27th May 1952 as Suit No. 575 of 1952 of the Sind Chief Court and had been re-numbered in 1958. It is therefore one of the oldest suits in this Court, and it is relevant to observe that the plaintiff's application to sue the defendants in a representative capacity under Order I, rule 8, C. P. C. was granted on 5/11/1962. I may also observe here that long before this order was passed the plaintiff had dropped defendants 9 to 12 on 20- 5-1954. On the other hand, defendants 1, 3, 4, 7 and 8 were originally ex parte, but defendants 3 and 4 had filed applications to set aside the ex parte orders passed against them, which were allowed on 9-11- 1959. However, I have to observe here that on the many dates on which this suit was heard before me, only the third and fourth defendant and their learned Advocates have appeared, therefore, although the written statement of these defendants was filed long after that of the other defendants, I shall first refer to their joint written statement. According to this written statement, the grandfather of these defendants, Syed Shershah, was a

holy man who had been granted a vast area of land by the Mirs of Sind. Thereafter when the British Armies landed in Karachi on their way to Kabul in the First Afghan War, Syed Shershah had given the British great assistance, and as a reward for this assistance the British Government had granted Shershah a Jagir for Shershah village which included the said land, but covered an area far more extensive. After the death of Shershah the land devolved on his heir, Umedali Shah, and on his death, on Saleh Shah and his brother, the 4th defendant, therefore these defendants claim that the said land always belonged to their family, that its purported transfer by the Sind Government to the plaintiff was illegal, and further as owners of the said land both Umedali Shah and they were entitled to sell if and lease it as they had been doing. In the alternative they have also relied on adverse possession for a hundred years and have denied the plaintiff's allegation that it had been put in possession of the said land or that it was in possession of it. On the contrary, they have submitted that the plaintiff had tried illegally to obtain possession from them which they had successfully resisted. Finally, they have submitted that, although the plaintiff sought the recovery of possession of the said land it had not valued its claim properly in order to avoid payment of court-fees. The pleas taken by defendants 5 and 6 in their written statement are similar to those by the defendants 3 and 4 in their written statement which was filed earlier, but the written statement of defendants 3 and 4 is much more elaborate. Finally, as to defendants 7 and 8, although they have not produced any evidence nor appeared before me, I may point out here that they claim possession through Umedali Shah deceased and Saleh Shah, therefore it is not necessary to consider their written statement further.

4. I have observed that Syed Saleh Shah and his brother were ex parte and that they had filed an application to set aside the ex parte order against them which was allowed, This application of Syed Saleh Shah and his brother was allowed on 9th November 1959, but issues had been framed five years earlier, on the basis of the written statements of the other defendants, and it was a condition of the order of this Court dated the 9th November 1959 that Syed Saleh Shah and his brother should not raise any further issues. The issues, as framed by the Court were as follows : (1) Was the area of land as described in para. 2 of the plaint vested in the plaintiffs by the Govt nment of Sind, if so, have the plaintiffs valid title to the same? (2) Have defendants 5 and 6, as heirs of Sahib Shah, any title to the land described in para. 2 of the plaint ? (3) Is the possession of defendants 5 and 6 of portions of the land described in para. 2 of the plaint lawful? (4) Had defendants 5 and 6 or their predecessors-in-title any right to lease plots of land falling within the area of land described in para. 2 of the plaint to defendants 7 and 8 ? If not, is the occupation of defendants 7 and 8 unlawful? (5) Is the suit barred by limitation? (6) Is the suit barred by section 41 of Act IV of 1882? (7) Is the suit bad for non-joinder of the Sind Government? (8) Is the suit maintainable? (9) What effect, if any, has the finding of the 5th A. C. M. regarding actual fact of possession "in and around the village Sher Shah" as stated in para 6 of the plaint in the suit? (10) Are the plaintiffs entitled to the declaration and the other reliefs prayed for in the plaint ? (11) Have the plaintiffs a cause of action? (12) General.

In his arguments Mr. Afzal Nabi submitted that the 5th issue really raised the plea of adverse possession, and as this plea had been taken even by defendants 5 and 6 in their written statement he should be allowed to advance arguments on this plea. Mr.

Samad Khan had no objection and this issue is therefore treated as an issue on adverse possession. Issues 2, X. and 4 are connected issues and they refer only to defendants 5 and 6, as, at the time when issues were framed, the case was ex parte against defendants 3 and 4. However, Mr. Samad Khan very fairly conceded that this should not prevent defendants 3 and 4 from pressing their claim under these issues, therefore he had no objection if defendants 3 and 4 were substituted instead of defendants 5 and 6 under this issue. With these observations, I shall now examine the mass of evidence produced by the parties on these issues, but before doing so I have to advert to another aspect of the litigation between the parties.

5. I have said that according to the order of the 5th Additional City Magistrate, Ibrahim Khamiso was also found to be in possession of the land in and around village Shershah. The said Ibrahim Khamiso had filed a suit against the Sind Industrial Trading Estate (the plaintiff in the present suit) and against Umedali Shah deceased for a declaration that he was the owner of the said land. This suit was consolidated with Suit No. 48 of 1958 which is before me. I shall therefore refer to Ibrahim Khamiso's suit as the old suit and to Suit No. 48 of 1958 as the main suit. Although both these suits were consolidated, the old suit was finally dismissed in 1967. However, long before it was dismissed on 9/11/1959 this Court had passed an order that the documentary evidence produced by the parties in the old suit should be read as evidence in the main suit, and further that the evidence of the Sind Industrial Trading Estate, of Saleh Shah, of the K. M C. and of the Government of Pakistan should also be read as evidence in the main suit. I have therefore to examine the evidence recorded in the old suit, and I have also allowed the parties before me to produce whatever evidence they wished the evidence has become very bulky. As arguments could not be concluded before the summer vacation, I have heard arguments during the vacation also, with the consent of parties, and before I examine the arguments of learned counsel, I would like to express my appreciation of their willingness to appear in the vacation and of the industry shown by them in this case.

6. Issue No. 1.-According to the written statement of Saleh Shah and his brother, the Resolution of the Sind Government transferring the said land to the plaintiff was illegal because it had not received the sanction of the Pakistan Legislature or of the Governor-General and was therefore not binding on the defendants. No arguments whatever were advanced on these objections, but, on the contrary, Mr. Afzal Nabi advanced an ingenious argument on the meaning and scope of the Resolution of the Sind Government. this Resolution (Exh.

15) in the old suit reads as follows "Resolution.-(1) Government are pleased to transfer to the Sind Industrial Trading Estate Ltd., subject to the modifications referred to in para. 2 below, all the land contained within the boundaries mentioned in the accompanying statement. In order to encourage the rapid industrialisation of Karachi, this land is transferred free of cost and Government also waive their right to claim ground rent. Consequently the value of the land and ground rent will not be taken into consideration in calculating the rentals payable by the factory owners and others accommodated on the Estate.

s(2) The question of control over the plots leased out prior to 1 Oth September 1947 to the Bone Mill and the Shark Liver Oil Factory, and to other Companies or Private Individuals, as also over the roads, villages and graveyards existing within the area will be decided in due course. Government also reserve the right to resume control of the land which may be required out of this area for the West Wharf Railway.

(3) In the event of the Sind Industrial Estates Company Ltd. being wound up, all the land including that leased out by the company will revert to Government.

By order of the Governor of Sind." The grant under this Resolution is of land excluding villages and graveyards. According to Mr. Afzal Nabi, the village of Goth Shershah included both the collection of huts of the village and the said land. This was because the said land constituted the pasture land and the barren land which belonged to the village. If this argument is accepted, according to Mr. Afzal Nabi, it would reduce the area of land transferred to the plaintiff from about 4,500 acres to 1,900 acres. On the other hand, according to Mr. Samad Khan, the word "village" in the Resolution meant only the area of the village on which the villagers had constructed their huts, as the object of the exemption was to reduce to a minimum the dislocation caused by the Resolution.

7. In support of his argument, Mr. Afzal Nabi referred me to the definition of "village" in the Sind Land Revenue Code and also to dictionaries. I agree with learned counsel that a village would normally include the land around the village which is cultivated by the villagers provided however that certain conditions are fulfilled. These conditions are that such land has been so cultivated for generations, so that by custom it forms part of the village. In the instant case, Mr. Afzal Nabi submitted that the said land was really pasture land. There is no evidence in this respect, and, as I shall presently show, at the time of this resolution and for many years before it, it must generally have been lying waste. In the absence of evidence, and there is none, I do not think barren land around a village forms part of a village, according to the popular acceptance of the word "village". The question therefore is whether, in these circumstances, the Sind Government had intended under its Resolution to exclude from the grant to the plaintiff the portions of the said land now claimed to constitute the pasture land of village Shershah. Mr. Samad Khan referred me to the Sind Government's letter to the Collector of Karachi dated the 17th November 1947 (Exh. 18/1), and the letter of the Deputy Collector to the Collector of Karachi dated the 24th March 1948 together with the note attached to it (Exhs. 18/3 and 18/4). I agree with learned counsel that paragraph 8 of the first letter, and the reference to village in the note to the second letter lend support to the argument that the Sind Government intended to exclude from the grant to the plaintiff only the actual village site on which the villagers, whether they be of Shershah or of Gulbi village, had constructed their huts.

Additionally, as I have pointed out, if Mr. Afzal Nabi's interpretation of the Resolution of the Sind Government is correct, it would reduce grant of land from 4,500 acres to 1,900 acres, whilst, according to Mr. Samad Khan's calculation it would reduce the grant to only 1,200 acres. Bearing in mind the object of the Resolution, namely, the rapid industrialisation of the country, I would be loath to cut down the grant in the manner suggested by Mr. Afzal Nabi. Again, if the Sind Government had intended to grant to the plaintiff only 1,900 acres, as claimed by Mr. Afzal Nabi, it would have demarcated the boundaries of the grant by reference to the land marks of the 1,900 acres and not by reference to the boundaries and land marks of 4,500 acres. Here I have to observe that Mr. Afzal Nabi also supplied me a map (marked as Exh. 24) showing the portion of the said land amounting to 2,600 acres (approximately) which is now claimed by Saleh Shah. Even if I accept Mr. Afzal Nabi's statement that the grant to the plaintiff was only 1,900 acres, a casual glance at the map produced by learned counsel shows how far fetched learned counsel's argument is. This is because the area of 2,600 acres claimed by Saleh Shah comes between and divides into two portions the 1,900 acres admittedly granted to the plaintiff, so that the bulk of the land granted to the plaintiff is cut off from the portion at the northern and western end. It is improbable in the extreme that the Government would have granted truncated pieces of land to the plaintiff for the object of developing the industries of the country. I have therefore no doubt that the word "village" in the Government Resolution means only the abadi of the village on which the villagers had constructed their huts.

8. Learned counsel then argued that the burden was on the plaintiff to show that it was entitled to the said land, therefore it should have examined the Government to prove its interpretation of the Government's Resolution, but the burden of the issue is on the plaintiff, and further, as I have pointed out, although the defendants had challenged the legality of the Sind Government's Resolution, they have nowhere alleged in their written statement that the so-called waste land or pasture land of Shershah was excluded from the grant to the plaintiff; therefore the plaintiff was under no obligation to examine the Government, and further, as the argument advanced by learned counsel is based on a mixed question of fact and law, which was not pleaded, the argument is not fit to be considered on this ground also.

9. Issue No. 2,-Despite the many hearings in the suits these defendants; have neither given

evidence nor appeared before me and, on the contrary, Saleh Shah has given evidence that he and his brother, the 4th defendant, have acquired the said land by inheritance. It is therefore not necessary to, consider this issue. 38 11. Saleh Shah has defined the boundaries of Sher Shah Village as follows : "To the west of Shersah village is Mauripur Road and Morro Graveyard. On the east is Old Manghopir Road and Mevashah Graveyard. On the north there is a chain of hills and a continuous range of hills. To the south is the Lyari River. The entire village of Shersah has been in the possession of my ancestors from before the conquest of Sind by the British . He has explained in his evidence that his grand-father had occupied the Shersah Village, as defined by him, in the days of the Mirs because being a Syed and a holy man he was entitled to do so.

He has further said that Shersah's title had been recognised by General Sir John Kein on account of the services rendered by Shersah to the British. Army in 1838 on its way to Kabul in the First Afghan War, and that Sir John Kein had granted Shersah a sanad or some writing for Shersah village which had the effect of making Shersah the Jagirdar without any liability to pay any taxes whatsoever. Unfortunately, the claim is not supported by any revenue records, therefore Saleh Shah should have produced the sanad and other documents given to his ancestor by Sir John Kein. I may also observe here that he had filed a declaratory suit for his title to the said land being Suit No. 50 of 1959 of this Court, and in this suit he had said that the sanad granted to Shersah by General Sir John Kein had been lost in the floods of the River Lyari. However in his evidence before me he gave a different explanation. He said that, after Shersah's death there was litigation between one Nasir Shah and Umedali Shah, and Nasir Shah had, out of spite, destroyed the sanad and other documents. But, as I shall presently show, Umedali Shah was always pursuing his claim to the said land, and he had a habit, which can only be described as fantastic, of preserving old documents. Thus he had even preserved invitation cards for tea parties by the Collector, therefore if Nasir Shah had really destroyed the sanad granted to Shersah, I have no doubt that he would have approached the British Government for a copy of the sanad. the more so as, according to Mr. Afzal Nabi, Umedali Shah was a man who was always co-operating with the Police and assisting them. But there is not a shred of evidence to show that Umedali Shah had even made a complaint to anyone, much less to the Police or to the Courts, that Nasir Shah had destroyed the sanad granted to Shersah. Again even if this story about the destruction of sanad is believed, as the Shersah family claims ownership for more than a hundred years, it could easily have proved this claim by other evidence. Thus the maps (Exbs. Z/1 to Z/3) prepared by Mr. Zahiruddin Pathan, a Court witness in the old suit, show that a railway line goes through the said land. Now if the said land belonged to the Shersah family, the railways must have paid the family compensation for the land for the railway bed, yet no evidence whatever has been produced to show that any payment was made to the Shersah family by the railways .or the land acquired by them. Similarly, there is a K. M. C.

school on the said land. If the claim of these defendants about the lost sanads be true, the K. M. C. would have paid the Sher Shah family compensation for the land acquired for the school or at least it would have demanded compensation from the K. M. C. for its land. There is however no evidence of any claim by the Shersah family for compensation, much less of any payment _ to it, and Saleh Shah, who was a very shrewd man, said in his cross-examination to Mr. Samad Khan as follows "The K. M. C. opened a school at our instance in Shersah village." Although the statement is ambiguous, the suggestion is that the Shersah family may have gifted the land to the K. M. C. Not only is there no evidence- . of any such gift, but defendants 3 and 4 have not even cross-examined Mr. Jafri, an Inspector of the K. M. C., about the land for this school. Mr. Nazir Ahmad has further said in his evidence that the Government had also built roads on the said land and allotted a plot on it to the Valika Textile Mills, and there is no evidence of any protest or claim by Saleh Shah or Umedali Shah.

But even if I exclude Mr. Nazir Ahmed's evidence, the existence of the railway and the school, in the circumstances discussed, are prima facie fatal to the claim of these defendants. Again, if the said land had really belonged to the Shershah family for a hundred years, as contended by Salehshah, it is impossible to believe that the family would not have sold or leased parts of it over this period of a hundred years. Although Mr. Afzal Nati did not refer me to any evidence in this respect, I find that in his cross-examination on 18th September 1967, Saleh Shah had said that Sher Shah's widow had sold land to one Achal Singh in 1908, and had further said : "I have got registered sale-deeds relating to these plots in favour of Achal Singh." But he neither produced these sale deeds at that time nor did he do so in his evidence before me. Further, as the said land was cultivable, he should have produced evidence about the said leases. No such evidence has been produced, and Mr. Afzal Nabi submitted that this was not possible because the land was pasture land. Perhaps because of the mass of evidence in these suits, learned counsel forgot what his witness had said in his cross-examination in the old suit on 19th September 1967. He had said that Umedali Shah, used to give the land owned by him on lease to tenants who were his Murids, and that these tenants used to pay him (Umedali Shah) Batai. He professed not to know their names. He had however ever admitted in the old suit that he was associated with Umedali in the management of Umedali Shah's estate from 1939, and that in 1939 he was 22 years old and a Magistrate. I am therefore not able to believe that he could not remember the names of his uncle's tenants. Additionally, even if he could not remember their names he has admitted in cross-examination that these tenants or their families were still living in his village. If therefore there had been a shred of truth in his story that Umedali Shah had been leasing out the said land and other lands to tenants, Saleh Shah could have produced some accounts in support of this claim and he could very easily have examined the descendants of those tenants who were living in his village. Instead he has examined a series of witnesses who were butchers or shopkeepers, therefore this casts very great doubt on his claim of ownership of the said land on the basis of lost sanads.

12. I have also to refer here to the evidence of Muhammad Suleman, Assistant City Surveyor, who was examined by him (Saleh Shah) in the old suit. This witness appears to be a very fair witness because he has candidly admitted that Umedali Shah had been requesting for the grant of a part of Shershah village to him. I therefore see no reason to doubt his evidence, and this witness produced extracts from the Municipal Records (Exhs. 81 to : 85) according to which, for many years from 1902 to 1919, Umedali Shah, with some others, was the lessee of Survey Nos. 82 to 85. These Survey Numbers fall within the said land, therefore prima facie they are fatal to Saleh Shah's claim. Further, Muhammad Suleman said in his evidence in the old suit as follows "The village site of Shershah was surrounded by certain plots of land which were agricultural land. That land was surveyed and had been given Survey Numbers. Plots Nos. 81, 82, 83, 84, 85, 88, 89, 91 and 93 were situated around the village site. They were given on lease for cultivation by the Government to various individuals." It is admitted before me that all these Survey Numbers fall within the said land. Then, after producing the extracts about the leases of these Survey Numbers, Muhammad Suleman said with reference to these plots as follows : "These plots were leased for ten years by the Government from 1893. The entries relating to these leases are in the Register which relates to the period 1921-22. In this register there are entries relating to the subsequent period also up to 1940. In 1939 the Government resumed the possession of plots Nos. 81, 82, 83, 84, 85 and 88 from the lessees, and transferred the possession of plots Nos. 82, 83, 84 and 85 to the Corporation for the extension of the sewage farm. The possession of plots Nos. 81 and 88 was transferred to the Military authorities for laying water pipe line. This was done in 1947." anally, Muhammad Suleman further said : "S>ed Umed Ali Shah took on lease the following plots of land from the Government, Plots Nos. 82,83, 84, 85. This lease was granted for 5 years in 1907. Then it was renewed for three years, and again renewed for 5 years. He started transferring lease rights from 26th March 1919. The transfers were mutated in our records and leases were renewed in the name of transferees.

This continued up to 1938-39 when the land was resumed by the Government and used for other purposes. He commenced transferring plots as their owners in 1948." As this evidence is completely inconsistent with that of Saleh Shah it is fatal to his claim of the lost grants and sanads in favour of Shershah. Further, Mr. Suleman's evidence about the resumption of the plots on the said land by the Government is supported by that of Mr. Mirza, Kadir Beg of the K. M. C, who was not even cross-examined by defendants 3 and 4. Thus this evidence even belies the claim of these defendants for adverse possession of the said land.

13. Mr. Afzal Nabi therefore sought to discredit this evidence on the ground that as the plaintiff had not produced the land Registers of 1873, an adverse inference should be drawn against its claim. These Registers were not produced because, accordingly to the Government, they were missing. The blame for this loss cannot be placed on the plaintiff and no adverse inference can be drawn against it. In any case, Muhammad Suleman's evidence relates to the possession and title of the said land from and after 1902, and even if Umedali Shah had any claim to it in 1873, Mr. Muhammad Suleman's evidence proves that his rights had been extinguished by 1902. Mr. Afzal Nabi then submitted that the plaintiff should have produced extracts of the said land from the City Deputy Collector's Office and that, as it had not done so, an adverse inference had to be drawn against its claim. The argument is not sound. As Mr. Muhammad Suleman was examined by Saleh Shah, the plaintiff is entitled to rely both on evidence, and on the extracts produced by him, and further a? Saleh Shah did not seek to declare his witness hostile. I do not see how Mr. Afzal Nabi can challenge Mr. Suleman's evidence. Learned counsel's argument is without merit. Mr. Afzal Nabi then referred me to a certified copy of a mortgage deed by Umedali Shah dated the 20th April 1895 (Exh. 118 in the old suit).

This deed states that Umedali Shah, a resident of Sher Shah Village, had mortgaged 18 Survey Numbers of land owned by him in Tapo Hubb, Taluka Karachi to one Sanbhoon for a loan of Rs. 400. According to Mr. Afzal Nabi, as this document was a registered document and an ancient document within the meaning of section 90 of the Evidence Act, it should be presumed to be correct, and if its contents were accepted as true, this was sufficient to discredit Mr. Suleman's evidence. Mr. Samad Khan rightly pointed out that, as the document was only a copy of the mortgage deed, the defendant Saleh Shah should have produced evidence of the redemption of the mortgage, the more so as the deed itself states that a payment to the mortgagee without a receipt would be invalid, and as he admittedly did not produce any evidence whatsoever of the redemption of the mortgage, Mr. Samad Khan submitted that the inference to be drawn from the mortgage deed and the surrounding circumstances was that even if Umedali Shah had owned any land, as stated in the deed, he had lost it because of his inability to repay the mortgage amount. I agree with this submission, and as the extracts produced by Mr. Muhammad Suleman related to the period commencing from 1902, I see no inconsistency between them and the mortgaged deed. Further, the mortgage deed does not give any particulars whatsoever of the land mortgaged by Umedali Shah, except that it was situated in Tapo Hubb. There is no evidence before me to show whether Shersbah village falls in this Tapo, therefore Mr. Samad Khan further submitted that even if the mortgage deed was accepted as genuine, it did not prove that Umedali Shah owned the said land. Mr. Afzal Nabi said that there was no evidence to prove that Umedali Shah owned land except in Shersbah village, therefore it should be presumed that the said land was situated in Tapo Hubb, to accept this argument would be to substitute conjecture for evidence. Secondly, Mr. Afzal Nabi had to admit that when documents are registered, the Registrar is not under any obligation to verify the contents of the documents, therefore I pointed out to learned counsel that the statement in the mortgage deed that Umedali Shah was the owner of 18 Survey Numbers was not an admission against Umedali Shah's interest, and was of no evidentiary value. Mr. Afzal Nabi was not able to show me how I could accept as correct the contents of the mortgage deed, but he merely relied on the presumption under section 90 of the

Evidence Act. As that presumption refers only to the execution of ancient documents, I do not see how, in the circumstances discussed, this deed (Exh. 118) can be said to prove the claim of the defendants that Umedali Shah was the owner of 18 Survey Numbers which constitute the said land. Having given anxious thought to this document, it seems to me that it is not sufficient to prove either the claim of Saleh Shah of title or of his claim of adverse possession. Additionally, I find that the deed states that the liability and responsibility for "the payment of land assessment" was on the mortgagor, and that if he failed to pay such charges, the mortgagee was entitled to pay these charges and recover them from the land mortgaged. On the assumption that the land mortgaged was the said land, this statement in the mortgage deed amounts to an admission that the said land was liable for land revenue and other charges. In the first place, this is not consistent with the arguments of learned counsel that the land was held by the Shershah family free of all rates and taxes, and secondly, as the land was liable to the payment of charges, the easiest method for the defendants to prove their alleged claim would have been to produce receipts of the charges paid by Umedali Shah and/or summon the revenue records to prove the payments by Umedali Shah. Their failure to produce any such evidence is another piece of evidence which is fatal to their claim of the ownership of the said land by the Shershah family.

14. Mr. Afzal Nabi next referred me to the correspondence between Umedali Shah and the Collector of Karachi and the K. M. C.

It is true that in his correspondence with the Administration and the K. M. C. Umedali Shah had claimed ownership of the Shershah Village (e.g. copy of his letter to the land Manager, K. M. C. dated the 9th January 1930, Exh. 41) and of his letter to the Commissioner, Sind dated the 25th April 1921 (Exh. 119 in the old suit). As I pointed out to learned counsel that a person's claim to ownership of land can never by itself prove his claim, learned counsel referred me to an application by the villagers of Shershah village to the Collector of Karachi dated the 11th January 1930 (Exh. 20). Learned counsel referred me to this letter on the narrow point of the existence of Shershah village for a period of time long enough to prove adverse possession. It is true that in this letter, which has been signed by half a dozen villagers, these villagers have claimed that they and their ancestors had lived in the village for generations without paying any land rent or taxes. But I do not see how this claim of adverse possession by the authors of this application helps the case of defendants 3 and 4. There is nothing in the application to show even by implication that the Shershah family had anything to do with the village, and merely because the village was named after the family, it cannot possibly be inferred that the village with all its lands was owned by the Shershah family! On the contrary, in this application, the villagers have said that their right to live in Shershah Village free of taxes was based on sanads granted to their ancestors which had been washed away in the floods of the Lyari River. This is a claim which is totally inconsistent with the plea of the defendants that their family owned the Shershah Village, therefore far from advancing the case of the defendants 3 and 4, this application (Exh. 20) falsifies their claim both of lost sanads and even of adverse possession for a hundred years. Mr. Afzal Nabi then submitted that Umedali Shah's claim of ownership of the said land had been impliedly recognised in letters of the K. M. C. to Umedali Shah dated the 9th May 1940 (Exh. 15/4), 24th July 1940 (Exh. 40) and 23rd May 1941 (Exh. 39). All these letters of the K. M. C. are in reply to communications addressed to it by Umedali Shah, copies of which have not been produced by the defendants. The first of these letters states: "In reply to your letter dated the 22nd ultimo regarding unauthorised occupation of your land by some persons I have to inform you that action may be taken by you against the unauthorised occupiers in the Court of law." As the defendants did not produce their copy of Umedali Shah's letter "dated the 22nd ultimo" the evidentiary value of this letter is negligible. Further, the plaintiff does not claim the abadi of Shershah Village and there is nothing in this letter to indicate that it refers to the said land and not to the abadi, therefore it does not support the claim of these defendants. In the other two letters the K. M. C. has informed Umedali Shah that it did not wish to acquire land in Shershah

village and this had been stopped. These letters were in answer to complaints by Umedali Shah, which could have been written by him on behalf of the villagers of Shershah Village without owning any land in the village, or because he owned some land in the village, or because he was the sole owner of the village. To hold on the basis of such letters that Umedali Shah was the owner not only of the huts in the village but of the said land would be to substitute conjecture for evidence. None of these letters, therefore supports Mr. Afzal Nabi's argument.

15 Learned counsel then referred me, with Mr. Samad Khans consent, to a letter by the President, Karachi Municipality to the Collector, Karachi dated the 16th March 1893 and a letter from the Hazur Deputy Collector to the Collector of Karachi dated the 20th May 1893. In the first of these letters the President of the Karachi Municipality has suggested to the Collector that the rights of persons in Shershah Village, who were entitled to possession of land, should not be disturbed but that squatters in the village should be removed. In the second letter the Huzur Deputy Collector has championed the rights of the old residents of Shershah Village and said that, although their huts were newly built, they had been living in the quarters for a long time and had to shift on account of floods in the Lyari River, therefore they should be treated as old residents and not be disturbed. Although these letters prove the existence of the village of Shershah, they do not contain any reference whatever to the alleged ownership of the village by Shershah or by Umedali Shah, therefore I do not see how this letter helps Mr. Afzal Nabi's arguments. I may also refer here to another Memorandum of the Collector of Karachi dated the 20th August 1937 (Exh. 42 in the old suit). This , Memorandum states : "With reference to his application dated the 10th August 1937 Syed Umedali Shah. informed that the matter has already been decided as intimated to him in this office letter No. H-3628 dated the 14th August 1936 and No. H-4 dated the 4th January 1937, and the Collector is unable to give any further consideration. His application has therefore been filed." As Saleh Shah has not produced his uncle's application of 10th August 1937 the meaning of this Memorandum is not very clear, but I pointed out to learned counsel that prima facie the contents suggested that Umedali Shah's claim had been rejected vide the letters dated the 14th August 1936 and 4th January 1937 referred to in the Memorandum, Learned counsel's only reply was that the plaintiff should have produced copies of the Collector's letters of 14th August 1936 and 4th January 1937. The argument is frivolous. As these letters were addressed to Umedali Shah, they were or should have been in Saleh Shah's possession. No evidence has been given to show that they were lost, therefore I have to presume that they were suppressed by Saleh Shah because they were fatal to his claim. In the result, the correspondence between Umedali Shah and the K. M. C. and the Administration is fatal to the claim of defendants 3 and 4 of ownership through some lost grant and, at the highest, the copies of Umedali Shah's letters are only relevant to the plea of these defendants of adverse possession. 39 Shershah Village. The proposition has only to be stated to reveal its fallacies. That Umedali Shah was to sit in a chair at the Collector's Darbars might well imply that he was a Zamindar who was useful to the Administration, specially on account of his co- operation with the Police, but it would be absurd to infer from this privilege that he was the zamindar who owned the whole of Shershah Village. Finally, learned counsel referred me to a letter by the Deputy Collector, Thatta dated the 18th July 1925, inviting Umedali Shah < to attend a meeting of "Chief Zamindars" to tackle the problem of dacoity. Reliance on this letter was placed on the same grounds that, as Umedali Shah was described as a chief Zamindar, it proved his claim to the said land. Not only is the argument utterly fallacious, but this letter does not bear the seal of the Deputy Collector, nor is there any evidence before me to show that the Deputy Collector, Thatta had jurisdiction over Shershah Village at the relevant time. The mode of address to the addressee of the letter, namely, Umedali Shah is also, to say the least, strange. The letter therefore appears to me to be a fabrication and no reliance can be placed on it. Further, the fact that such a letter was produced makes it difficult to place reliance on the evidence of the defendants.

17. I now turn to the evidence of the maps (Exhs. Z1 to Z3 which have also been produced and re-numbered in the suits before me) together with the report (Exh. 8/2) of Mr. Zahiruddin Pathan, Architect. Mr. Zahiruddin Pathan is an Architect who was appointed by the Court to give assistance in the determination of the conflicting claims of the parties about the said land. He not only submitted maps as directed by the Court, but he has also submitted his report (Exh. 8/2) and though he was examined as a witness also, his report is comprehensive, and it will be sufficient to refer to it and the maps produced by him. He has stated in his report that maps for the years between 1874 and 1894 had been produced before him, and the map (Z1) relates to the position in 1873-1874, the map (Z2) relates to the position 20 years later, whilst the last map (Z3) relates to September 1966 when Mr. Zahiruddin conducted his field investigations. Mr. Afzal Nabi submitted that the map (Z1) supported Saleh Shah's claim both of title and adverse possession because it showed that the said land or most of it was under cultivation in or about 1873. It is true that this map shows a large area of land under cultivation. But as this area has been demarcated on the basis of official maps, it is relevant to bear in mind, as pointed out by Mr. Muhammad Suleman, that these maps show the area of the cultivable land and not the cultivated land. This is because agriculture in and around the village of Shershah was dependent on the vagaries of the monsoon, and it was only in years of good rainfall that land was cultivated. Additionally, Mr. Zahiruddin has stated in his report in reference to the map (Z1) as follows "However, it cannot be established from any map or records available with us whether the cultivated area then, (sic) the Shershah village, the Sardar Sher Ali Khan Pathans Village and other possessions belonged to the Government or private owners." In view of this statement, the mere fact that much of the said land was cultivable does not support in any way Mr. Afzal Nabi's argument that in or about 1873 the cultivable land was in the possession of and/or had belonged to Shershah family. Then in reference to the second map (Z2) Mr. Zahiruddin has stated that he had prepared this map on the basis of the Revenue maps of the K. M. C. of 1892 according to which the Survey Numbers covered by the said land were Survey Nos. 76 to 93. He has then again pointed out that, on the basis of the evidence produced before him by all the parties, it was not possible for him to decide whether the Survey Numbers were privately owned or were owned by the Government. He has also said in reference to the markings on his map as follows : "In pencil circles the Survey Nos. 81, 82, 83, 84, 85, 86, 87, 88, 89 and 90, 91, 92, 93 are shown as private ownership in map K- 2 as submitted by K. M. C., has further produced map marked K-3 showing some of these Survey plots as having been resumed by the Government or K. M. C. and handed over to K. M. C. Plots 81, 82, 83, 84, 85 and 88 are shown as resumed by Government and handed over to K. M. C. vide C. D. C. letter No. 1080 dated 13-9-1939 and plots 86 and 87 as resumed by K. M.

C. vide K. M. C. resolution No. 151 dated 7-3-1902, in the absence of record which none of the parties have been able to produce, it is difficult to ascertain the grounds of resumption, status of the lands regarding ownership or Government lease and compensation if paid or not. Of course as per the original plan all the Survey Numbers in Map Z-2 and K-3 are within the original K. M. C. boundaries as defined in 1873 and some of the cultivated plots correspond to map Z-1 establishing cultivation of this area over a long period particularly survey Nos. 81, 82, 83, 84, 85 and surrounding areas. No record is available for the period 1900 till 1947 except the resumption orders of Government of K. M. C. which again need production of original resolution to whether the cultivated lands determined in Map Z-2 and K-3 belonged to Government or were private ownership. However, the fact remains that dwellings in the form of hutments and also graveyards continued to expand during this period, thus covering hitherto lying waste lands." As Mr. Zahiruddin Pathan has admitted that he was not able to ascertain whether the cultivable land shown in the map Z-2 was privately owned or not, merely because portions of the said land were shown as cultivable, it does not mean that they were owned by or were in the possession of Umedali Shah at the relevant time ; therefore this map and Mr. Zahiruddin's report are also of no assistance to the determination of the claim of the parties for the period for which this map

relates. It is true that Mr.

Zahiruddin has expressed scepticism about the Government's claim for the resumption of the cultivable land shown on this map.

Presumably Salehshah did not refer him to the evidence of his own witness, Mr. Muhammad Sulleman, but in any event the criticism is of no relevance now as all the evidence is before me. I accept Mr. Muhammad Suleman's evidence and I prefer it to Mr. Zahiruddin's observations which were made in ignorance of the real situation. I now turn to the last map Z-3. As it shows in red "the possession of people other than S. I. T. E. within the area claimed by S. I. T. E. "Mr. Afzal Nabi argued that this map fully supported his submission, but Mr. Zahiruddin has explained that this map shows the position which he found when he inspected the land in dispute in or about September 1966. Merely because persons claiming through Saleh Shah were in occupation of part of the said land in 1966, this does not mean that the land thus occupied had been owned by or was in possession of Saleh Shah or Umedali Shah when the suit was filed in 1952 or at any time prior to the institution of the suit.

18. Finally, the other documentary evidence on which Mr. Afzal Nabi relied were leases and/or sales of plots on the said land executed by Saleh .:Shah from and after 1948. Learned counsel attached very great importance to these documents because the transfers thus made ran into hundreds and Exhs. 113 to 113/229 are only some of these transfers. I am however not very impressed by this evidence. First of all, there is the evidence of Mr. Nazir Ahmed which I shall presently consider. Secondly, these deeds do not relate to the whole of the said land. Thirdly, the mere production of these deeds does not mean that Saleh Shah was in possession of the land he sought to transfer. However, transfers on such a mass scale could constitute an important piece of evidence to show that these defendants had openly and _ actively asserted their claim. But in order to succeed, they have to show that0 they had asserted their claim for the statutory period of limitation.

According to Mr. Samad Khan, the statutory period was 60 years or 30 years, whilst, according to Mr. Fazeel, senior counsel for defendants 3 and 4, it was 12 years. Assuming for the sake of argument that Mr. Fazeel's submission is correct, as the suit was filed on 26th May 1952, he had to prove adverse possession for 12 years, namely, from and after 26th May 1940. But as all these transfer deeds were executed from and after 1948, and after the Government Notification dated 10th September 1947 (Exh, 44) announcing the transfer of the said land to a Government Trading Estate, they fail to prove the claim of adverse possession by defendants 3 and 4.

19. The result of this discussion is that, although these defendants have produced an enormous mass of documents, they are completely irrelevant to their claim except the transfer deeds and Umedali Shah's letters which have some evidentiary value. As I have explained, the transfer deeds are not sufficient to prove adverse possession. As to Umedali Shah's letters, they are few and far between, and although Mr. Fazeel had to show acts of adverse possession from 1940, he was not able to refer me to any letter by Umedali Shah asserting his claim between 1940 and 1947. In any case, letters by a claimant asserting his own title are of limited evidentiary value, the more so as, in the instant case, until 1948, Umedali Shah's letters were written in the humble and beseeching tone (See Umedali Shah's letter to the Commissioner of Sind dated the 25th April 1921, Exh. 119) which is hardly consistent with a claim for adverse possession. Additionally neither Mr. Fazeel nor Mr. Afzal Nabi were able to refer me to any letter in which Umedali Shah had defined the boundaries of the land claimed by him or even explained what he meant by Sbershah village, therefore the question is what Umedali Shah meant by "Shershah Village" in these letters. It is relevant to observe here that Shershah Village was really a suburb, and a poor suburb of Karachi, and there is no evidence to show that it was some ancient village with well

defined boundaries. Further, although there was cultivable land around it, Mr. Muhammad Suleman has proved that the cultivation was dependent on the vagaries of the monsoon, and it was Mr. Afzal Nabi's case in his arguments that the said land was really pasture land ; therefore merely because this land was adjacent to the village, it does not follow that it was part of the village. On the principle that an ambiguity in a letter has to be construed against the author of the letter, it follows that Umedali Shah's references in his letters to Shersah Village must be construed to mean the land constituting the abadi of Shersah Village only. Thus, in the circumstances discussed, even these letters fail to support the claim of defendants 3 and 4 of adverse possession of the said land.

20. The only other evidence that remains for consideration on the question of adverse possession is that of Saleh Shah and of the five witnesses examined by him. I have deliberately considered this evidence last, because it is the least reliable type of evidence in support of a claim of adverse possession, and assuming that it can be accepted, it has to be scrutinised with great care and caution. Mr. Samad Khan submitted, both that this evidence was entirely unreliable, and that even if it were accepted, it did not amount to adverse possession. I shall examine his second submission first, and in support of this submission he referred me to an authority of this Court in *Zainab Bai v. Ibrahimji*. In dismissing a claim for adverse possession a Division Bench of this Court observed in that case at page 221 as follows : "The question of adverse possession is essentially a question of fact. What constitutes adverse possession has been succinctly put in the commentary by Rustamji on the Limitation Act at page 826 of its sixth edition. This is what the learned author has said : No matter in what jurisdiction the determination of what constitutes „ adverse possession may arise, the decisions and text books are unanimous in declaring that the possession must be actual, visible, exclusive, hostile, and continued during the time necessary to create a bar under the statute of limitation. Whenever any of these elements is lacking, no title by adverse possession can ripen.' The rule is so axiomatic that it is unnecessary to refer to case-law on the point." In the instant case the said land is not urban land, therefore applying the test laid down in the passage from Rustamji, quoted above, on the footing that the said land was cultivated by Umedali Shah's tenants, as claimed by Saleh Shah in his evidence, Saleh Shah had to produce the alleged tenancy agreements, accounts of income from these tenancies, receipts for payment of revenue, and the evidence of the tenants concerned or their families. If however the land was not cultivated, as submitted by Mr. Afzal Nabi in his concluding address, then the task of proving adverse possession was undoubtedly more difficult.

If the land was waste land or pasture land, then, in order to prove that their possession was actual, visible, exclusive and hostile, the defendants 3 and 4 had to adduce evidence to show that, for the statutory period of limitation, (which is at least from 1940) they had openly asserted their claim to the said land and this, I think, they could only do by proving that they had erected boundary walls or fences, or boundary pillars on the said land, and/or at least posted Chowkidars to guard their land. But I have already pointed out that, although Saleh Shah said in his evidence in this Court in September 1967 that his uncle Umedali Shah used to lease out the said land to his Murids, he neither examined such Murids nor their families, nor did he produce any evidence whatsoever of the alleged tenancies. He did not even produce any evidence of the payment of Government Revenue, although, according to the mortgage deed (Exh. 118) on which Mr. Afzal Nabi laid so much stress, Umedali Shah was liable for the payment of land revenue. The failure to produce such evidence is fatal to Saleh Shah's claim that the said land was in the adverse possession of his uncle because it was cultivated by his uncle's Murids. However, as I have already pointed out, Mr.

Afzal Nabi argued that the land was pasture land, and in support of this submission he relied on Mr. Suleman's evidence that, as the said land was dependent for cultivation on the vagaries of the monsoon, it was not always cultivated.

I have no doubt that Mr. Suleman spoke the truth. This means that, if the said land was cultivated, it was cultivated sporadically, and as the nineteen thirties and early forties were lean years for agriculture, it is unlikely in the (1) P L D 1962 Kar. 209 extreme that the said land was cultivated, specially in view of the Sukkur Barrage. I have therefore no doubt that it was resumed by the Government, as stated by Mr. Suleman, because it was lying waste. There is also not a shred of evidence in support of Mr. Afzal Nabi's argument that it was - pasture land. But assuming this argument is true, it means that Saleh Shah had given false evidence when he claimed that the said land had been cultivated by his family's tenants. Additionally, it is also more difficult to prove adverse possession of pasture land. The bold assertion of title by Saleh Shah from and after 1948, and the many leases and sales by him constitute evidence of the claim of these defendants of adverse possession. But, apart from the evidence in rebuttal, this evidence is not sufficient to prove the case of these defendants, because it is only for a fraction of the statutory period of limitation. As they had to prove adverse possession at least from 1940 if not earlier, and as there is no evidence of sales or such other overt acts of adverse possession between 1940 and 1948, they had to give evidence at least of the erection of boundary walls, fences, boundary pillars etc. Saleh Shah naturally precluded himself from giving such evidence by his false claim of tenancies, but even though the witnesses examined by him were obviously obliging witnesses, they have merely stated that their huts were situated on lands granted to them by Saleh Shah and his ancestors, and that Saleh Shah owned the whole village. There is thus not a shred of evidence about boundary walls or fences, or boundary pillars, the usual indicia of adverse possession of waste land, and the only part of this evidence that can help defendants 3 and 4 is the statement of these witnesses that their huts were constructed on land owned by Saleh Shah and gifted to them. However, they have not given the precise location of their huts which must be presumed to be in the abadi of the village. But the plaintiff does not even claim the abadi of the village, therefore even if I accept the oral evidence, it does not in any way further the claim of these defendants.

21. Mr. Fazeel, senior counsel of these defendants, was perhaps aware of the difficulties created by the false claim made by Saleh Shah in his evidence, therefore he sought to base his case on a judgment reported in *Ramzan and others v. Fakir Mahomed and others* There a Division Bench of the Sind Judicial Commissioner's Court observed that in a claim for adverse possession "Possession of a part of land with defined boundaries in exercise of an assertion to claim the whole is evidence of possession of the whole." According to Mr. Fazeel, the statement of the five witnesses examined by Saleh Shah that the land on which their huts were constructed had belonged to Saleh Shah was true, therefore their statements that the land surrounding the village belonged to Saleh Shah should be accepted, in view of the observations quoted. But those observations had reference to a small plot of land in the city of Karachi. In the instant case, there is no evidence to show that the huts of the witnesses examined were on the same Survey Numbers which are in dispute in this suit, therefore the judgment is not relevant to learned counsel's argument. On the other hand, as the said land in the instant case is waste land or agricultural land, I may here, with advantage, refer to a judgment of the House of Lords and of the Judicial Committee. In *John Clark & Elphinstone* at p. 170 their Lordships observed with reference to a claim for adverse possession of agricultural land as follows : "There is no doubt that in many cases acts done upon parts of a tract of land may be evidence of the possession of the whole."

If a large (1) A I R 1925 Sind 201 (2) 6 A C 164 field is surrounded by hedges, acts done in one part of it would be evidence of the possession of the whole." I am in respectful agreement with these observations, hence the importance of the fact that Saleh Shah has given no evidence whatsoever of adverse possession by the erection of boundary walls or fences. I now turn to the judgment of the Judicial Committee in *Omanhene v. Chief Oheng* (1) and at page 587 Lord

Frankerton observed in reference to adverse possession as follows : "in questions of disputed ownership of land, occupation and possession' of portions of the disputed area is not relevant evidence of title to the whole area unless it can be reasonably attributed to a right to the whole area. The portions so occupied may be so numerous and so closely adjoining that they practically cover the whole area.....F. Alternatively, the occupation of a portion may be reasonably attributed to a right extending over the whole field. But the larger area must be defined ; in other words, it must be attributable to an existing boundary." There is no trace of evidence in the instant case of boundaries or boundary walls, therefore the judgments cited are fatal to the claim of defendants Nos. 3 and 4.

22. Additionally, as I have pointed out, Mr. Sarnad Khan also criticised the evidence of Saleh Shah and of his witnesses on account of the many discrepancies in it. Thus, apart from the discrepancies in Saleh Shah's evidence about the manner in which the alleged sanads were said to have been lost, Mr. Samad Khan pointed out that, according to the order of the Deputy Land Commissioner (Exh. II/i) dismissing the claim of the defendants 3 and 4 under Martial Law Regulation 64, Saleh Shah had claimed 10000 acres and 15000 acres as his inheritance from Umedali Shah, whilst defendant No. 4 had claimed only 5000 acres. On the other hand, in the suits before me it is admitted that both defendants 3 and 4 are brothers and had equal shares in the alleged inheritance from their uncle. However whilst it is now admitted that both these defendants had equal shares in their inheritance from Umedali Shah, Saleh Shah had filed a suit in this Court, namely No. 50 of 1959 in which he had sought a declaration that he was the sole owner of 15000 acres of land inherited from his ancestors Umedali Shah and Shershab. No explanation was given by Mr. Afzal Nabi of this discrepancy and even though Suit No. 50 of 1959 was dismissed, prima facie the claim made in it by Saleh Shah does not rouse confidence in his veracity. Finally, in its plaint in the main suit as well as in the other suits filed by it (Suits Nos. 141 to 144 of 1962 and 111 of 1965), the plaintiff has claimed ownership of the said land which, according to it, amounted to about 4000 acres. In reply to this averment, in each of their five written statements, Saleh Shah and his brother have expressly stated that they claimed the entire area of the said land amounting to about 4000 acres. However, in the final map produced before me by Mr. Afzal Nabi (Exh. Z-4) and according to Saleh Shah's counteraffidavit of 11th June 1970, these defendants now claim about 2600 acres of the said land and not the whole of the said land. These are material discrepancies which cast very great doubt on Saleh Shah's evidence (1) AIR 1934 PC 185 and I have to state with regret that no reliance whatever can be placed on it.

23. I now turn to the evidence of the five witnesses examined by Saleh Shah. Of these witnesses, Hussain and Fateh Muhammad were examined in 1960. They have merely said that Saleh Shah and his ancestors owned the village, that they had received their land from his family and that they had never paid taxes in respect of their properties. But though Fateh Muhammad said that Shershab village was a big village, he gave the number of huts in the village as more than 500. This was hardly consistent with the tall claims of defendants 3 and 4 ; presumably therefore three more witnesses were examined before me, namely, Dur Muhammad, Shah Beg and Hussain, who did not impress me at all. Like the earlier witnesses these witnesses also claimed to have received land from the Shershab family and not paid taxes on it to the K. M. C. or to the Government. Both Dur Muhammad and Shah Beg were very old and claimed to have lived all their lives in Shershab village, but although Dur Muhammad said that he knew Shah Beg, Shah Beg professed not to know him. Again, whilst Dur Muhammad said that about 4000 people lived in the village at the time of Partition, Shah Beg thought that the population of the village at the time of Partition was over 15,000. It is true that Hussain was a more intelligent witness and he fully supported Saleh Shah's claim. However, although he produced an identity card to show that he was in independent employment, he did not produce any evidence whatever to show that he had really lived on the said land from 1947 to 1965 or thereabouts as

claimed by him. I am therefore doubtful if he had really lived on the said land. The truth of the matter is, as was reluctantly admitted by him in cross-examination, that he was a Murid of the Shershah family and a Murid cannot give evidence against his Pir. In any case, all these five witnesses have admitted that they owned land in the Shershah village which had been gifted to them by the Shershah family, and Hussain even admitted that the gift to him consisted both of land and a structure on it. However, all these witnesses admitted that they did not have any documents of title in their favour, therefore it is clear that their claim to whatever little property they profess to own was dependent entirely on the goodwill of Saleh Shah, They were obviously interested witnesses and no reliance can be placed on their evidence. Additionally, as I have pointed out, there is evidence in rebuttal. In the first place, in his arguments on the 9th issue, Mr. Afzal Nabi relied on an order of an Additional City Magistrate on a complaint filed by the plaintiff under section 145, Cr.

P. C. According to this order of 3-1-1950 only Umedali Shah and one Ibrahim Khamiso were in occupation of land in and around Shershah village. Ibrahim Khamiso was the plaintiff in the old suit and he claimed possession on behalf of the Brohi Jamait, therefore this finding of the learned Magistrate is not consistent with Saleh Shah's claim that he was in adverse possession of the whole of the said land ; secondly, Mr. Nazir Ahmad, the plaintiff's Engineer, had given evidence on 24-3-1959 about the manner in which the plaintiff had taken possession of the said land on its transfer to the plaintiff. He had said that having commenced taking possession, the plaintiff had posted Chowkidars, erected boundary pillars and even received possession of two fields, whose owners were unknown, and that it was only after some time that the plaintiff met with obstruction from Saleh Shah and his family. This evidence was not challenged in cross-examination, and Mr. Nazir Ahmed, who has given evidence before me, appeared to me to be a witness of truth. I believe his evidence and this evidence is also inconsistent with Saleh Shah's claim that his family was in possession of the entire area of the said land. Further, as Mr. Nazir Ahmed's evidence is inconsistent with that of Saleh Shah's witnesses, on this ground also, I disbelieve their evidence.

24. In the result I am not impressed by the oral evidence nor by the evidence of the 2500 sales and leases between 1948 and 1950 on which Mr. Afzal Nabi relied. The defendants 3 and 4 have therefore failed to prove that they were in adverse possession of the said land and I decide issues 2,3,4 and 5 against them.

25. Issue No. 6.-This issue was not pressed by Mr. Afzal Nabi.

26. Issue No. 7.-Mr. Afzal Nabi submitted that the Sind Government was a necessary party because the said land had not been transferred to the plaintiff. Learned counsel did not attempt to elaborate his argument and failed to show how it could be contended that the said land had not been transferred to the plaintiff. On the contrary, Mr. Muhammad Suleman, Assistant Surveyor, has expressly said in his evidence that the said land had been transferred to the plaintiff, and as he was a witness examined by Saleh Shah it was not necessary for the plaintiff to produce further evidence on this issue. Mr. Suleman's evidence is sufficient for the determination of this issue, and on the basis of this evidence, I decide it in favour of the plaintiff.

, 27. Issue No. 8.-This issue has reference to the question of court- fees. I may observe here that the plaintiff has claimed possession of 1650 square yards of land from the defendants, and in para.

9 of their written statement the defendants 3 and 4 have pleaded as follows : "With regard to para. 9 of the plaint, it is submitted that the suit is for possession of land and the court-fee paid is less as it ought to have been on the market value of the lands, the possession of which is

claimed in the suit. Hence the suit is not maintainable for want of payment of proper court-fee and is liable to be dismissed.” 1 he question of valuation has to be decided with reference to the value of the 1650 square yards of land claimed by the plaintiff at the date when the suit was filed. Although defendants 3 and 4 raised this issue, they have not given any evidence to show that the valuation in the plaint was arbitrary, but Mr. Afzal Nabi relied on the cross-examination of Mr. Nazir Ahmed in which Mr.

Nazir Ahmed has admitted that the value of land was about Rs. 25,000 per acre. However, that statement had reference to the date when he gave evidence, namely, March 1959. It is not possible from this statement to determine what the value of 1650 square yards of land was in 1952. The result is that, although the defendants have raised this issue, they have not caied to produce any evidence. I have to observe here that the plaintiff has also filed, for abundant caution, an application for payment of further court-fees, but the valuation of the land, of which it claims possession, cannot be determined unless evidence is re- opened. The defendants have taken adjournments at will, yet they did not care to produce any evidence under this issue, therefore to permit them to re-open evidence at this stage would be an abuse of the process of the Court, and I decide this issue against them.

28. Issue No. 9.-I have referred in para. 23 to the order of Mr. Leghari, the learned Additional City Magistrate (Exh. 7/10) that the plaintiff in the old suit and Umedali Shah were in occupation of land in and around Shershah village. Mr. Afzal Nabi made much of this order as the plaintiff's complaint had been dismissed by it. I have examined this order and, according to it, in support of its claim, the plaintiff had examined Mr. Nazir Ahmed, and, as in this Court, Mr, Nazir Ahmed had said that, after the transfer of the said land the plaintiff had taken possession of it or most of it by posting Chowkidars and erecting boundary pillars. Although the order of the learned Magistrate is not very clear, he has dismissed the plaintiff's complaint on two grounds. The first ground is that Mr. Nazir Ahmed's evidence about the posting of Chowkidars could not be believed because no account books had been produced by the plaintiff, and the second ground appears to be that the erection of boundary posts by itself did not amount to evidence of possession. As to the first ground, I have pointed out that Mr. Nazir Ahmed appeared to me to be a witness of truth and as he has not even been cross-examined on bis statement about the posting of Chowkidars, it must be accepted as correct. As to the second ground, the fixing of boundary posts is a normal method for claiming possession of over large areas 'of land, but Mr. Fazeel, senior counsel for defendants 3 and 4, tried to defend the view of the learned Magistrate on the basis of a judgment reported in *Hearsey v. Karam Singh* (1) in which the Oudh Judicial Commissioner's Court had taken the view that in the case before it the erection of boundary pillars did not amount to evidence of possession. But the view of the Court was based on the peculiar facts of the case before it, and this is very clear from a passage in the judgment of the Court at page 719. This passage states : “The putting up of boundary marks may be a very effective assertion of title. In the case of staking out a claim it would be a most effective assertion, but in a case such as this it does not indicate physical possession.” Far from supporting Mr. Fazeel's submission the judgment goes against his contention. I have no doubt that the erection of boundary pillars can be good evidence in support of a claim for possession, therefore, with respect, n the order of the learned Magistrate appears to be erroneous. It is therefore of no assistance to the determination of the disputes between the parties in this suit.

29. Issues Nos. 10 and 11.--Although the plaintiff seeks in this suit a declaration and a permanent injunction with regard to the whole of the said land, it has sought possession of only 1650 square yards from the defendants, therefore Mr. Afzal Nabi submitted that the suit was hit by section 42 of the Specific Relief Act, 1877. Section 42 reads as follows : “42. Any person entitled to any legal character or to any right as to any property, may institute a suit against any person denying, or interested to deny, his title to such character or right, and the Court may in its

discretion make therein a declaration that he is so entitled, and the plaintiff need not in such suit ask for any further relief : Provided that no Court shall make any such declaration where the plaintiff, being able to seek further relief than a mere declaration of title, omits to do so." (1) 371 C 715 According to Mr. Afzal Nabi, defendants 3 and 4 were in possession of the whole of the said land at the date of the suit therefore the suit should be dismissed as they had sought for possession of only 1650 square yards. The argument that the defendants 3 and 4 were in possession of the whole of the said land was based on the evidence of Saleh Shah and his five witnesses, the evidence of the thousands of leases and sales, and the order of the learned Additional City Magistrate (Exk.

7/10). I have held that Saleh Shah and the five witnesses examined by him were not witnesses of truth, therefore I can neither accept their evidence of adverse possession, nor their evidence that Saleh Shah and his brother were in possession of the said land at the date of the suit. Turning now to the leases and sales, as I have pointed out, they establish that from 1948 Saleh Shah and his family were openly asserting their claim of adverse possession, but the mere production of these documents does not prove the correctness of their contents ; therefore by itself this evidence fails to prove that on the date of the suit Saleh Shah was in actual physical possession of the land referred to in these documents. Mr. Afzal Nabi made much of the fact that over 509 of these leases or sales were registered, but again, as I have pointed out, the Registering Officer was not under any obligation to verify the contents of the averments in the documents being registered by him, therefore this also does not enable defendants 3 and 4 to prove that they were in physical possession of the entire area of the said land at the date of the suit.

Finally, as to the order of the learned Magistrate (Exh. 7/10), as I have pointed out, not only is it vague, but it is also erroneous.

On the other hand, I was impressed by the evidence of Mr. Nazir Ahmed, which I accept. I therefore reject the argument of learned counsel that defendants 3 and 4 were in physical possession of the entire area of the said land at the date of the suit.

30. Learned counsel next submitted that even if the defendants 3 and 4 had failed to prove that they were in possession of the entire area of the said land, at the date of the suit, the evidence showed that the plaintiff was not in possession of more than 1650 sq. yards of the said land, at the date of the suit, therefore as he had claimed possession of only 1650 sq. yards, the suit had to be dismissed under section 42 of the Specific Relief Act. In the first place, assuming for the sake of argument that Saleh Shah or persons claiming through him were in possession of more than 1650 square yards at the date of the suit, as distinct from the claim of possession of the whole of the said land, this was a question of fact which should have been pleaded, and not only has it not been pleaded but the plea is also inconsistent with para. 9 of the written statement which I have quoted earlier ; therefore learned counsel's argument is not fit to be considered.

31. Additionally, there is no evidence whatever in support of the allegation that the plaintiff was not in possession of more than 1650 square yards of the said land at the date of the suit, namely, 26th May 1952. Learned counsel however argued that his case was supported by the evidence of Mr. Nazir Ahmed before me. Mr. Nazir Ahmed was cross-examined before me on the question of squatters on the said land after the institution of the main suit. He explained that five other suits had been instituted against persons who had illegally occupied parts of the said land after the institution of the main suit, but he was a witness of truth and he admitted that the plaintiff may not have impleaded in the various suits before me "all the persons whom at the present moment are in actual occupation of the plots in dispute." In view of this admission, learned counsel sought to argue that the suit was hit by section 42 of the Specific Relief Act. But Mr. Nazir Ahmed's

candid admission related to the situation prevailing when he gave evidence, and that was 17 years after the suit had been filed. I therefore pointed out to learned counsel that section 42 had to be construed with reference to the situation prevailing when the suit was filed. Learned counsel however submitted that the plaintiff should have impleaded in the main suit or filed suits for possession against all the persons who, according to it, had - illegally occupied the said land after the institution of the plaintiff's various suit's. Thus, the argument of learned counsel implies that the relevant date for the maintainability of a suit under section 42 is not the date of its institution, but the date when it is decreed. If this argument is accepted, it would put a premium on fraud, and a dishonest defendant could prevent even the execution of a decree by committing trespass between the date of the judgment and the decree. Further, as pointed out by Mr. Samad Khan, the argument also ignores the fact that the main suit is a representative suit. However, it is not necessary for me to consider learned counsel's argument because the very argument advanced by learned counsel had been advanced by the plaintiff in the old suit, namely, Ibrahim Khamiso, in an appeal before the Supreme Court (Civil Appeal No. K-29 of 1963). It is true that the judgment of their Lordships is not reported, but it is unfortunate that learned counsel advanced an argument contrary to it without referring to it. Be that as it may, in repelling the very argument advanced by learned counsel before me, their Lordships observed: "We are not inclined to agree that the relevant date for the determination of the maintainability of a suit is the date of the decree and not the date of the institution of the suit. If the suit was competent when it was filed it should not become incompetent because of what happened subsequently in the absence of a provision which expressly or by necessary implication produces that result for the invalidation of a valid proceeding is akin to giving retrospective effect to a fact which occurs after the institution of the suit. There is nothing in section 42 which obliges us to place such a construction on it. It is true that Courts may take notice of subsequent events and may grant relief other than that which is prayed for or a relief to which the plaintiff was not entitled at the date of the suit, but to which he acquires a right subsequently. But that is something entirely different from saying that a suit competent on the day on which it is filed can be dismissed not because the plaintiff loses the substantive right which entitled him to relief but on grounds of technicality which is attracted only because of something happening after the institution of the suit." I am in respectful agreement with these observations, therefore even if the argument advanced by learned counsel arises out of the pleadings, it is not fit to be entertained.

32. Finally, as I have observed, the plaintiff has dropped defendants 9 to 12 who, according to the plaint, were in possession of 1050 square yards of land at the date of the suit. According to Mr. Afzal Nabi, the effect of dropping these defendants was that the plaintiff had wilfully omitted to sue for possession, although it was entitled so to do, therefore the suit had to be - dismissed under section 42 of the Specific Relief Act. As pointed out by Mr. Samad Khan, the argument not only ignores the order of this Court that the defendants 3 and 4 were being sued in a representative capacity, but if a suit for 4000 acres could be dismissed in this manner, in my humble opinion, it would be making a fetish of technicalities. I may also observe here that it was unfortunate that this argument was pressed without reference to the Supreme Court's judgment in Civil Appeal No. K-29 of 1963. In allowing the appeal of Khamiso in the old suit, their Lordships observed in reference to this very argument as follows: What the section prevents is the making of a declaration when in relation to that declaration a further relief was open, but was not asked for. It does not forbid the making of a declaration when with respect to the property covered by the declaration no further relief was open. If in the present case the Court had made a declaration of ownership in respect of that part of the property in suit which was in the possession of the plaintiff, could it be said that section 42 was violated? The obvious answer is in the negative for if the suit had been filed only in respect of the property in the possession of the plaintiff there could be no objection on the basis of section 42." I am in respectful agreement with these observations and I reject as frivolous the learned counsel's submission that the suit itself merits dismissal. The next point for consideration is whether the plaintiff is barred from obtaining

possession of the 1050 square yards, which were in the possession of defendants 9 to 12, because it dropped these defendants from the suit in 1954.

As the objection involves a mixed question of law and fact it can be considered only if it has been pleaded. Although defendants 3 and 4 had filed their written statement five years after the plaintiff had dropped defendants 9 to 12 they have not taken any objection in their written statement that the plaintiff was not entitled to relief with regard to the said 1,050 square yards because it had dropped defendants 9 to 12, therefore learned counsel's argument cannot be considered.

33. No other argument was raised on this issue. However, I may observe here that Mr. Samad Khan, who was disturbed by Mr.

Afzal Nabi's argument under this issue and the previous issue, had filed an application for the amendment of the plaint in which he really sought permission for payment of maximum court-fees in the sum of Rs. 10,000. I have no doubt that if this application were allowed, it would be easier for the plaintiff to obtain possession of the said land from trespassers who have encroached on it after the institution of the main suit. But if the application is allowed, it would open evidence and further delay proceedings in these suits. In view of the judgment of the Supreme Court, it is clear that the plaintiff has other remedies with regard to any cause of action accruing after the institution of the main suit, therefore this application is unnecessary and cannot be allowed. It is dismissed and both these issues are decided in the plaintiff's favour.

Issue No. 12.-In the result, the plaintiff is entitled to a decree as claimed by it in the suit. However, before I consider the other suits, I have to observe here that Mr. Samad Khan gave an undertaking from the Bar that the plaintiff did not intend to touch the Chillakhanas and graveyards which it had walled off. Subject to this undertaking, the main suit is decreed as prayed with costs.

35. I now turn to the other four suits of the plaintiff. As I have pointed out, Mr. Nazir Ahmed explained in his evidence that Saleh Shah had continued to sell illegally plots on the said land after the main suit had been "7; The plaintiff had therefore filed five other suits in this Court against Saleh Shah and the transferees from him, being Suits Nos. 141 to 144 of 1962 and 111 of 1965.

The relief sought by it in these five suits is similar to that in the main suit, except that it has also prayed for compensation from the defendants who are transferees of plots from Saleh Shah. As it received possession of the land in dispute in Suit No. 143 of 1962 from the defendant, who was the transferee from Saleh Shah, it has Withdrawn this suit. Hence the suits to which I have referred, in each of which Saleh is a defendant and has raised the same pleas as in the main suit. However, in Suit No. 141 of 1962 the defendant, other than Saleh Shah, handed over possession of the land in his occupation to the plaintiff, therefore by an order of this Court dated 1st May 1969, the suit against this defendant was dropped. Similarly, in Suit No. 144 of 1961 there was only one defendant other than Saleh Shah, and ex parte proceedings against him were ordered by this Court on 19th September 1966. The result is that these two suits have been contested only by Saleh Shah. Although a few of the issues framed in these suits were not identical to those in the main suit, Mr. Afzal Nabi did not press these issues, and submitted very reasonably that these two suits should be decided in accordance with my judgment in the main suit. Mr. Samad Khan also only relied on his arguments and on the issues in the main suit. As I have held in that suit that the plaintiff is entitled to the decree sought by it, I also decree the plaintiff's prayer in both these suits for possession and an injunction against Saleh Shah with

costs. As to the other two suits, namely* Suit No. 142 of 1962 and Suit No. III of 1965 in the former there is only one defendant other than Saleh Shah, whilst in the latter there are two other defendants. However, none of these other defendants have taken any part in the proceeding before me. They have also not produced any evidence in these suits nor have their learned counsel appeared on the many dates on which I have heard arguments. Again, as in the other two suits Mr. Afzal Nabi rightly submitted that Saleh Shah's defence in both these suits was the same as in the main suit, and that he did not therefore wish to advance any arguments in these suits. Mr. Samad Khan also did not advance any arguments in these suits and only relied on his submissions in the main suit. It is therefore not necessary to consider the pleadings or the issue in these two suits As I have decided the main suit in the plaintiff's favour, the plaintiff's claim in both these suits also (namely Suit No. III of 1965) is decreed against the defendants for possession and injunction as prayed with costs.

K B A> Suits decreed.

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